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January 17, 2017					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 16-16

**MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY**

v.

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER

ORDER MODIFYING INITIAL ORDER

Another order issued today dismissed the portions of the Complaint alleging violations of the Shipping Act regarding a 2006 Mercedes SL65 and three Harley Davidson motorcycles. *MAVL Capital Inc., IAM AL Group Inc., and Maxim Ostrovskiy v. Marine Transport Logistics, Inc. and Dmitry Alper*, FMC No. 16-16 (ALJ Jan. 17, 2017) (Initial Decision Partially Dismissing Complaint) (*MAVL v. MTL*). The allegations concerning the 2011 Porsche Panamera remain pending.

The Initial Order in this proceeding stated:

Commission regulations require the parties to meet and confer to establish a schedule and to consider mediation. The parties must submit a joint status report with proposed schedule, as outlined below, within twenty days of the service of the answer.

Pursuant to Rule 201(g), “[d]iscovery must be completed within 150 days of the service of a respondent’s answer,” and pursuant to Rule 201(h), the parties are required to meet and confer: (a) to establish a schedule for the completion of discovery, including initial disclosures and discovery related to experts; (b) to resolve to the fullest extent possible disputes relating to discovery matters; and (c) to expedite, limit, or eliminate discovery by use of admissions, stipulations, and other techniques. 46 C.F.R. § 502.201. As part of the joint status report, the parties must submit a joint proposed schedule which concludes discovery within 150 days of service of the answer and allows issuance of the initial decision within one year.

MAVL v. MTL, FMC No. 16-16 (ALJ Aug. 16, 2016) (Initial Order). The Show Cause Order delayed submission of the joint status report pending resolution of the issues raised by that Order. *MAVL v.*

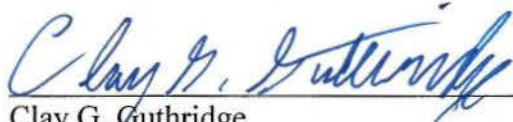
MTL, FMC No. 16-16 (ALJ Sept. 15, 2016) (Order to Show Cause Why Complaint Should Not Be Partially Dismissed).

The issues raised in the Show Cause Order have been resolved. It has come to my attention that since December 12, 2013, the parties have been involved in litigation over the vehicles identified in the FMC Complaint, including the Porsche, in the Eastern District of New York. *MAVL Capital, Inc. v. Marine Transport Logistics, Inc., et al*, No. 13-cv-7110 (E.D.N.Y. Dec. 12, 2013) (Complaint filed). Apparently the parties have conducted discovery in the New York case. Therefore, the requirement in the Initial Order that the parties meet and confer to establish a schedule for the completion of discovery is vacated. All relevant information from the initial disclosures and other discovery taken in the New York proceeding may be used in this proceeding.

On or before February 2, 2017, a party seeking to take additional discovery in this proceeding must file a motion seeking leave of the undersigned to take the discovery. Prior to filing the motion, the party seeking to take additional discovery must contact the party from whom it seeks information and attempt to obtain the information voluntarily. The motion must:

1. Describe the efforts the party made to obtain the information without resorting to discovery.
2. Include the specific discovery that the party contends is relevant to a party's claim or defense and proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit. A party seeking discovery must include:
 - (a) the specific interrogatories that it intends to serve;
 - (b) the specific requests for production of documents that it intends to serve;
 - (c) the specific requests for admission that it intends to serve; and
 - (d) the identities of the specific witnesses it intends to depose, including the subject areas that need to be addressed and the estimated length of time the deposition is expected to take.
3. For each requested interrogatory, request for production, request for admission, and deposition, a statement why the information obtained during discovery in the New York case was not adequate.

On or before February 16, 2017, a party opposing the proposed additional discovery may file a response to the motion. Because the motion for leave to take discovery is a non-dispositive motion, 46 C.F.R. § 502.69(g), the party filing the motion may not file a reply to the response except as provided in 46 C.F.R. § 502.71(c).


Clay G. Guthridge
Administrative Law Judge